

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TPG PRESSURE, INC., *Complainant*

v.

OMNI LOGISTICS LLC AND EPIC FREIGHT SOLUTIONS LLC,
Respondents.

DOCKET NO. 22-31

Served: January 16, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

REVISED BRIEFING SCHEDULE

On January 16, 2024, Complainant TPG Pressure, Inc. filed a motion seeking to modify the briefing schedule by three weeks. The motion states that Respondents Omni Logistics, LLC and Epic Freight Solutions, LLC do not oppose the motion.

The motion indicates that counsel for Complainant recently moved to a new firm, is experiencing technical issues transferring client files, and currently does not have full access to the files for this case. Motion at 1-2. “Despite the diligence and best efforts of Complainant and its counsel, Complainant is unable to adequately prepare its brief, proposed findings of fact, and appendices by January 25, 2024, under the current circumstances.” Motion at 3.

Complainant’s request is reasonable under the circumstances. Therefore, the three-week extension will be permitted. The parties are reminded to review the requirements for filing briefs and appendices in the December 6, 2022, Initial Order and the May 12, 2023, Scheduling Order. In their briefs, the parties should discuss the legal and factual basis for their claims and should address all relevant elements of the claims. *See* 46 C.F.R. §§ 545.4, 545.5; *Bakerly v. Seafrigo USA*, 2024 WL 95381 (ALJ 2024).

The parties are hereby **ORDERED** to follow this revised briefing schedule:

February 15, 2024	Complainant’s brief, proposed findings of fact, and appendix.
March 18, 2024	Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
April 2, 2024	Complainant’s reply brief and responses to proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge